

Senate File 2338

S-5139

1 Amend Senate File 2338 as follows:

2 1. Page 2, by striking lines 2 and 3 and inserting <of
3 this Act. Beginning the calendar year that begins January 1,
4 2032, and every ten consecutive calendar years thereafter, the
5 department shall review the efficacy of the designated HHS
6 districts in performing the HHS districts' functions during the
7 immediately preceding ten consecutive calendar years.>

8 2. By striking page 10, line 8, through page 11, line 17,
9 and inserting:

10 <Sec. _____. DEPARTMENT OF HEALTH AND HUMAN SERVICES AND AREA
11 AGENCIES ON AGING — REDESIGNATION OF PLANNING AND SERVICE
12 AREAS — REVIEW AND REPORT.

13 1. For purposes of this section, unless the context
14 otherwise requires:

15 a. "Area agency on aging" means the same as defined in 42
16 U.S.C. §3002.

17 b. "Department" means the department of health and human
18 services.

19 c. "Health and human services district" means the same as
20 defined in section 217.1, as amended in division I of this Act.

21 d. "Planning and service area" means the same as defined in
22 42 U.S.C. §3002.

23 e. "Redesignation" means the process described in 45 C.F.R.
24 §1321.13(e) to change the designation of a planning and service
25 area.

26 2. The department shall not submit an application for
27 redesignation for federal approval prior to January 1, 2027.

28 3. a. The department and each area agency on aging shall
29 collaborate in good faith to do all of the following:

30 (1) Determine the full fiscal impact of a proposed
31 redesignation including but not limited to the costs related
32 to all of the following:

33 (a) Transition.

34 (b) Administration.

35 (c) Information technology.

1 (d) Property.
2 (e) Contract modifications.
3 (f) Personnel.
4 (g) The long-term finances of the state and each affected
5 area agency on aging.
6 (2) Determine the effects of a proposed redesignation on all
7 of the following:
8 (a) Service continuity.
9 (b) Client access.
10 (c) Provider networks.
11 (d) Rural service delivery.
12 (e) Wait lists.
13 (f) Consumer choice.
14 (g) Outcomes for older Iowans.
15 (3) Identify and recommend reasonable alternatives to
16 redesignation and reasonable means to align aging services
17 coordination with the geographic boundaries of health and
18 human services districts in a manner that adequately achieves
19 the state's policy objectives for the delivery of aging and
20 disability services.
21 (4) Recommend the date by which a proposed planning
22 and service area will be implemented as the result of a
23 redesignation.
24 b. In completing the requirements under paragraph "a", the
25 department and each area agency on aging shall do all of the
26 following as applicable:
27 (1) Provide information and data to the department as
28 determined necessary by the department.
29 (2) Engage with and receive input from relevant
30 stakeholders including but not limited to service providers,
31 consumer representatives, advocates for older Iowans, and
32 representatives of rural and underserved communities.
33 c. No later than December 15, 2026, the department shall
34 submit a report to the general assembly that details the
35 results of the collaboration between the department and the

1 area agencies on aging under paragraph "a". Stakeholders shall
2 be provided a meaningful opportunity to review and provide
3 comments on the report prior to the department submitting the
4 report. A summary of the input from the stakeholder review and
5 stakeholder comments shall be included in the report.>
6 3. By renumbering as necessary.

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